Form No. INC-13

MEMORANDUM OF ASSOCIATION

OF

NIYODAYA FOUNDATION

COMPANY INCORPORATED UNDER SECTION 8 OF THE COMPANIES ACT, 2013
(Company limited by Shares)

[Pursuant to rule 19(2) the Companies (Incorporation) Rules, 2014]

1) The name of the company is "**NIYODAYA FOUNDATION**".

2) The registered office of the company will be situated in the State of Karnataka.

3) The objects for which the company is established are:

(A) THE OBJECTS TO BE PURSUED BY THE COMPANY ON ITS INCORPORATION ARE:

1. To carry on the activity of promoting education to underprivileged, displaced, specially abled and destitute children of all sections of the Society by

   - Providing Basic, Primary and Secondary School education.

   - Undertaking after school educational activities and programs.

   - Supporting Bridge courses to children who drop out of school due to financial or other constraints.

   - Adopting or supporting schools or Operating Independent schools that provide holistic and free education.

   - Providing Infrastructure resources, educational material, food or any other support required to any schools/Institutions having the objective of educating such children.

   - Providing necessary resources by way of financial assistance/freeship/scholarship to such children who want to pursue higher education/vocational courses/training and

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- Undertaking any other activity to support such children.

2. To carry on the activity of education and of promotion, overall development, creating/updating, social/technical awareness of people with special needs through:

    a. Developing Assistive Technological Solutions and Products either independently or in association with other institutions, that would be provided free of cost to such people or organizations working for the benefit of such people.

    b. Conduct of education, vocational training sessions, sports and health programs, camps, workshops, conferences both online and offline.

    c. Setting up and/or acting as nodal centre to educate people with special needs on all types of Technological solutions and products.

    d. Support institutions that provide vocational training, education for persons with special needs

    e. Establish, run, manage on own or in association, in any part of India or elsewhere, Institutions for imparting education, vocational training, personality or skill development courses either online or offline or through post.

3. To Provide any kind of support to people/children affected by natural/man-made calamities, endemic/epidemic/pandemic and critical illness which may include cancer, neurological diseases, kidney related diseases, heart related surgeries and such other life threatening diseases.

(B) MATTERS WHICH ARE NECESSARY FOR FURTHERANCE OF THE OBJECTS SPECIFIED IN CLAUSE 3 (A) ARE:

1. To mobilize funds by ways of philanthropic Donations or general / special / Grants either in pecuniary and / or in non-pecuniary form or mode from any person and agencies including but not limited to Government and other Institutions of both Indian and foreign origin for pursuing the objects of the Company.

2. To acquire by purchase, lease, exchange or otherwise any movable or immovable property and any rights or privileges-which the Company may

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deem necessary/ convenient for pursuing the main objects of the Company.

3. To enter into partnership or any other financial arrangement, joint venture, concession or co-operation with persons or companies carrying on or engaged in the pursuit of similar objects of the company.

4. To import, buy, apparatus, tools and things necessary to pursue the main objects of the Company.

5. To vest any movable or immovable property, right or interests acquired by or received or belonging to the Company, in any person or persons or company or any type of entity on behalf of or for the benefit of the Company and with or without any declared trust in favour of the Company.

6. To acquire and takeover the whole or any part of the business, good will, trade-marks, properties and liabilities of any person or persons, firms, companies engaged in or carrying or proposing to carry on similar objects which the Company is authorized to carry on and possessed of any property or rights suitable for the main objects of the company and to pay for the same either in cash or in shares or partly in cash and partly in shares or by any other kind of financial arrangement.

7. To negotiate and enter into agreements with Indian and foreign individuals, companies, corporation and such other organizations for technical, financial or any other assistance for carrying on all or any of the main objects of the Company.

8. To receive donations / grants / funding for execution of projects aimed at developing technological solutions for the furtherance of the objects of the Company. Any Asset/products/solutions created in the course of executing the project shall vest with the company and the company may decide to sell / or other-wise employ / treat such Assets/products/solutions for furtherance of the objects of the Company in such manner as found to be expedient.

9. To amalgamate with any other such company or companies having all or any objects similar to the objects of this Company in any manner whether with or without process of liquidation of that Company.

10. Subject to the companies Act, for the time being in force, to undertake or take part in the formation, supervision or control of the main operations

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of any person, firm, body corporate, association, undertaking having objects similar to the objects of the Company.

11. To enter into any contract or arrangement with any Government, semi Government Department, Municipal, local or otherwise or any persons or companies that may seem conducive to the main objects of the company or any of them and to obtain from any such Government, Authority, person or any company, rights, charters contracts, licenses and concessions which the company may obtain to comply with its objects.

12. To take necessary steps for the company to be registered or recognized in or under the laws of any place outside India and to do all acts necessary for carrying on in any foreign country the main objects of the Company.

13. The Company may invest any amount that may be required to be accumulated/set apart as per the provisions of the Income Tax Act in such manner as may be specified therein.

14. To open and operate current, overdraft, loan, cash credit, or deposit accounts with any scheduled / Co-operative banks in India.

15. Subject to applicable provisions of Companies Act, 2013 and the Regulations made there under and the direction issued by Reserve Bank of India to borrow or raise money in such manner and at such time or times as the company may determine and to secure the repayment of any money borrowed, raised by mortgage, charge or lien upon all or any of the properties or assets or revenues of the company, both present and future.

16. To undertake and execute any trusts, the undertaking of which may seem to the company beneficial either gratuitously or otherwise in connection with the main objects of the company.

17. To establish or promote or concur in establishing or promoting any company, for the purpose of acquiring all or any of the properties, rights and liabilities of the company.

18. To mortgage, lease, exchange, grant license and other rights, manage, develop or dispose of undertaking, investments, assets and rights of the company or any part thereof for such consideration as may be conducive to the main objects of the company.

19. To employ agents, consultants, advisors or other experts for existing activities, future planning of any other works, to investigate and examine into the conditions, prospects, value, character and circumstances of main

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objectives and undertakings and generally of any assets, properties or rights which the company proposes to acquire.

20. To create any reserve fund, sinking fund, insurance fund or any other such special funds whether for depreciation, repairing, improving, research, extending or maintain any of the properties of the company or for any other such purpose conducive to the main objects of the company.

21. To establish for any of the objects of the company branches, or to establish any firm or firms, Corporate Bodies at places in or outside India as the company may determine.

22. To pay out of funds of the company all costs, charges and expenses of and incidental to the formation and registration of the company and any company promoted by the company and also all costs, charges, duties, damages and expenses if any, incidental to the acquisition by the company of the property or assets.

23. To send out to foreign countries and anywhere in India its directors, employees or any other such person or persons for investigating possibilities of furtherance of the objects of the company

24. To compensate for loss of office of any Managing Director or Directors or such other officers of the company within the limitations prescribed under the Companies Act, 2013 or such other statutes or rules having the force of law and to make payments to any person whose office of employment or duties may be determined by virtue of any transaction in which the company is engaged in.

25. To agree to refer to arbitration any dispute between the company and any such other company, firm, individuals or any other such body and to submit the same to arbitration in India or abroad either in accordance with India or any foreign system of law.

26. The company may be registered with the relevant authority under the Income Tax Act, 1961('ITA') with the intent of obtaining exemption for the net income / income / corpus received by / accrued to the company under the ITA and that the donations to the company either by way of corpus or income of the Company be granted exemption/relief under the ITA in the hands of the donor.

27. The Company may also be registered with Ministry of Home Affairs, Government of India, for the purpose of receiving contributions from foreign entities, in terms of the Foreign Contribution Regulation Act, 2010(FCRA) or as per the applicable laws of India.

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The doing of all such other lawful things as considered necessary for the furtherance of the above objects:

4) The objects of the company extend to the State of Karnataka in particular & whole of India in General.

5) i) The profits, if any, or other income and property of the company, whensoever derived, shall be applied, solely for the promotion of its objects as set forth in this memorandum.

ii) No portion of the profits, other income or property aforesaid shall be paid or transferred, directly or indirectly, by way of dividend, bonus or otherwise by way of profit, to persons who, at any time are, or have been members of the company or to any one or more of them or to any person claiming through any one or more of them.

iii) No remuneration or other benefit in money or money's worth shall be given by the Company to any of its members, whether officers or members of the company or not, except payment of out of pocket expenses, reasonable and proper interest on money lent, or reasonable and proper rent on premises let to the company.

iv) Nothing in this clause shall prevent the payment by the company in good faith of prudent remuneration to any of its officers or servants (not being members) or to any other person (not being member), in return for any services actually rendered to the company.

v) Nothing in this clause shall prevent the payment by the company in good faith of prudent remuneration to any of its members in return for any services, (not being services of a kind which are required to be rendered by a member), actually rendered to the Company.

6) No alteration shall be made to this Memorandum of Association or to the Articles of Association of the company which are for the time being in force, unless the alteration has been previously submitted to and approved by the Registrar.

7) The liability of the Members is Limited.

8) The Authorized Share capital of the company is Rs.5,00,000 (Rupees Five Lakh only) divided into 50,000 (Fifty Thousand Only) Equity Shares of Rs.10/- each.

9) (1) True accounts shall be kept of all sums of money received and expended by the company and the matters in respect of which such receipts and expenditure take place, and of the property, credits and liabilities of the company; and, subject to any

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reasonable restrictions as to the time and manner of inspecting the same that may be imposed in accordance with the regulations of the company for the time being in force, the accounts shall be open to the inspection of the members.

(2) Once at least in every year, the accounts of the company shall be examined and the correctness of the balance-sheet and the income and expenditure account ascertained by one or more properly qualified auditor or auditors.

10. If upon a winding up or dissolution of the company, there remains, after the satisfaction of all the debts and liabilities, any property whatsoever the same shall not be distributed amongst the members of the company but shall be given or transferred to such other company having objects similar to the objects of this company, subject to such conditions as the Tribunal / appropriate authority may impose, or may be sold and proceeds thereof credited to the Rehabilitation and Insolvency Fund formed under section 269 of the Act.

11. The Company can be amalgamated only with another company registered under Section 8 of the Act and having similar objects.

12. We, the several persons whose names, addresses, description, and occupation are hereunto being desirous of being formed in to a company not for profit, in pursuance of this Memorandum of Association: -

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S.No	Name, Description, Addresses and Occupation of the subscribers	No of Equity Shares taken by each subscribers	Signature of Subscriber	Name, Description, Address and Occupation of the Witness
1	**Name:** Subramaniam Ganesh **Father's name:** Noorni Shivaramakrishnan Venkatasubramaniam **Address:** #205, Sai Deep haven, Sri Rama Temple, New Thippasandra, Bangalore North, Karnataka 560075 **Description:** Promoter, Director and Subscriber **Occupation:** Engineer 	7,500		I witness to the subscribers, who have subscribed and signed in my presence on 15.5.2021 at Bangalore and further I have verified their identity details for their identification and satisfied myself of their identity particulars as filled in. Jyothi Gopal JYOTHI GOPAL (FCA) M. No. 218155 #3211, Vasishta Pardise, 2nd Floor, 1st Temple Road, 11th Cross, Malleswaram, Bangalore - 560003 UDIN: 21218155AAAAAS3006
	Name: Lalitha Shivaraman **Father's name:** Rangarajan Shivaramakrishnan **Address:** # 104, A- block, Sierra Syllable Virupakshapura, Kodigehalli, Bangalore North, Vidyaranyapura, Bagalore, Karnataka – 560097 **Description:** Promoter, Director and Subscriber **Occupation:** Draftsman 	2,500		

Place: Bangalore
Date: 15-05-2021